

Court No. - 21

Case :- WRIT - C No. - 8439 of 2023

Petitioner :- Kumar Satyam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Krishna Mani

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed praying for quashing of the notice dated 31.01.2023 issued by respondent no.2 and for a mandamus commanding the respondents not to take any coercive action against the petitioner in pursuance of the said notice. The petitioner has also prayed for a mandamus directing the respondents to provide new electric connection to its premises in pursuance of his application no.1012621699.

Learned counsel for the respondent-Electricity Department Sri S.K. Pandey points out that the impugned notice dated 31.01.2023 is in fact notice of provisional assessment. The petitioner has already filed objections against the same. The final assessment order is yet to be passed. He further states that as soon as the petitioner clears the electricity dues, as may be found against him in pursuance of the pending assessment proceedings, the application for sanction of new electric connection will be considered.

Having regard to the submissions made, the instant petition is disposed of with direction to the respondent-Electricity Department to pass order of final assessment strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. It is further provided that the application of the petitioner for sanction of new electric connection will thereafter be considered in accordance with the law.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 20.3.2023

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